Collective Bargaining Agreement: Zimbabwe National Water Authority Undertaking

IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], approved the publication of the Collective Bargaining Agreement set out in the Schedule registered in terms of section 79 of the Act [*Chapter 28:01*]:—

SCHEDULE

AGREEMENT

NATIONAL EMPLOYMENT COUNCIL FOR THE UNDERTAKING OF THE ZIMBABWE NATIONAL WATER AUTHORITY

COLLECTIVE BARGAINING AGREEMENT: ZIMBABWE NATIONAL WATER AUTHORITY UNDERTAKING

(CODE OF CONDUCT)

Made and entered in accordance with the Labour Act [*Chapter 28:01*], as amended from time to time, between the Zimbabwe National Water Authority of the one part (herein referred to as "the employer") and the Zimbabwe Water Trade Union (herein referred to as "the employees" or "the trade union") of the other part, being parties to the National Employment Council for the Undertaking of the Zimbabwe National Water Authority (herein after referred to as "the Council").

Title and period of operation

(1) This agreement which is the code of conduct and grievance procedure, shall be cited as the Employment Code of Conduct for the Undertaking of the Zimbabwe National Water Authority.

(2) This agreement shall operate from the first day of the month following its registration and shall remain in force for five years thereafter after which it shall fall for review in terms of section 101(11) of the Act.

Title

1. This code shall be known as The Employment Code of Conduct for the Employment Council for the Undertaking of the Zimbabwe National Water Authority.

Scope and date of operation

2. This code shall apply to all permanent, contract and casual employees in grades 8 -15 who are in the employment of the Zimbabwe National Water Authority. For the avoidance of doubt this code does not cover managerial employees who will be covered by the National Code of Conduct S.I. 15 of 2006. This agreement shall operate from the first day of the month following its registration.

3. The guiding principles of the code

3.1 To ensure rules of natural justice are observed in dispute settlement, which include—

- the need to properly and thoroughly investigate alleged offences before a penalty is passed;
- the need to be objective in dealing with disciplinary matters;
- the right for alleged offenders to be heard and to call witnesses before a decision on a matter can be made;
- the right to appeal against a decision when aggrieved.

3.2 To ensure uniformity in application and speedy resolution of disputes and grievances.

3.3 To recognise discipline as corrective and educative in the first place and that punitive action will only be applied where the former have failed.

3.4 To acknowledge the strong correlation between discipline and a grievance-free environment and employee morale and productivity.

4. Access to code

4.1 All employees covered by this Code in the Undertaking shall receive the necessary training in order to be aware of the existence of this Code and the Code and any amendments to it

shall be displayed on notice boards at all work places.

4.2 The Code shall be subject to review every five years in conformance to section 101(11) of the Labour Act [*Chapter 28:01*].

Rights and responsibilities of employer

5. Employer shall have the following rights and responsibilities in terms of this Code—

(a) to manage and conduct the business of the Authority effectively and efficiently;

(b) to maintain order and discipline in accordance with the provisions of this Code;

(c) to ensure that employees abide by the provisions of this Code;

(d) to ensure that fair labour practices at the workplace as defined in the Labour Act [*Chapter 28:01*] are adhered to;

(e) to work with employee representatives in establishing effective disciplinary and grievance handling procedures;

(f) to educate employees on the provisions of the Code.

Rights and duties of employee representatives

6. In this Code, the Employee Representative shall have the following rights and duties—

(a) to promote and protect the rights and interests of all employees;

(b) to work with the employer in establishing effective disciplinary and grievance procedures;

(c) to ensure that fellow employees familiarise themselves with and abide by the provisions of this Code;

(d) to ensure that fair labour practices at the workplace as defined in the Labour Act [*Chapter 28:01*] are adhered to.

Rights and duties of the employee

7. Under the contract of employment, the employee has the following rights and duties—

(a) to all rights conferred to him or her under the Constitution, in particular those in section 65, as well as those under Part 11 of the Labour Act [*Chapter 28:01*];

(b) not to be unfairly dismissed, and that when he or she is alleged to have breached this Code, he or she will be subjected to a fair hearing, and in respect of his or her duties;

(c) to render his or her undivided services to the employer at all times prescribed under the collective bargaining agreement and to do so with diligence, competence and efficiency;

(d) to obey all lawful instructions given to him or her by the employer, and to generally subordinate him or herself to the employer.

Interpretation of terms

8. In this Code:

Act – means Labour Act [*Chapter 28:01*];

Days – means working days excluding weekends and public holidays;

Disciplinary action – means action taken against an employee for committing an act of misconduct as defined in this code;

Employee – means any person who performs work or services within the Undertaking for remuneration or reward on such terms and conditions as provided for under the Labour Act [*Chapter 28:01*]. This shall include trainees, apprentices, interns and attachment students;

Employee representative – means trade union official whose union is registered to represent employees in the Undertaking, a workers' committee member or a legal practitioner appointed by the employee;

Employer – means the Zimbabwe National Water Authority or simply "the Authority";

Head of department – means a manager in charge of a department or anyone appointed to act in that capacity;

Human Resources Official – means any official from Human Resources Department;

ICT- means Information Communication Technology;

Managerial employee – means an employee whose contract of employment requires or permits him or her to hire, transfer, promote, suspend, layoff, dismiss, reward, discipline or adjudge the grievance of other employees or one who the Authority has designated as such;

Misconduct – means unacceptable behaviour in terms of this code;

Parties – means the complainant and the accused employee;

Supervisor – means an employee with authority to give instructions to other employees or one designated as such by the employer;

Trade union – means any registered trade union as defined in the Labour Act [*Chapter 28:01*] and whose scope of registration covers employees employed in the Undertaking;

Undertaking – means the Zimbabwe National Water Authority;

Works Council – means a council composed of an equal number of representatives of the employer and representatives drawn from members of the worker's committee, and a chairperson.

9. Acts of misconduct, definitions and categorisation

9.1 Under this Code acts of misconduct are defined and shall be categorised as follows—

(a) **MINOR ACTS OF MISCONDUCT**

(i) **Reporting late for work**

This is when an employee is not at his or her place of work at the time stipulated for the start of his or her work.

(ii) **Improperly or untidily dressed**

It is a minor offence, when it occurs for the first time, for an employee to turn up or during working hours to be improperly or untidily dressed.

(iii) **Leaving the workplace before knock off time**

It is an act of misconduct for an employee to leave his or her place of work before the stipulated knock off time without authority.

(iv) **Poor time keeping, including extended tea or lunch breaks**

An employee commits an offence when he or she reports for work either after start off time or after tea or lunch breaks.

(v) **Disappearing from the work station for a period of less than one day without authority**

It is an act of misconduct for an employee to just disappear from his work station for even less than a day without obtaining permission.

(vi) **Minor breaches of safety or security regulations**

An employee commits an act of misconduct if he or she disregards set Authority safety or security regulations resulting in no loss of property.

(vii) **Concealing of one's defective work**

An employee commits an act of misconduct if he or she covers or conceals work which is not properly done and not up to standard in circumstances where the substandard work does not result in serious damage to property or loss to the Authority.

(viii) **Performance of duty without due care and attention**

An employee commits an act of misconduct if he or she does not take reasonable care in the manner in which he or she carries out his/her work resulting to potentially resulting in substandard work being produced.

(ix) **Abusive language or gestures**

Using abusive language or gestures is when an employee uses language and or gestures which ridicule, despise, annoy or offend another person and is likely to provoke negative reaction.

(x) **Horseplay or rough behaviour**

An employee engages in horseplay or rough behavior if he or she engages in rowdy and noisy behavior which includes pushing each other even as a joke.

(xi) **Smoking, eating or drinking at unauthorized places and times**

It is a minor offence to indulge in smoking, eating or drinking at unauthorised places and times.

9.2 **MODERATE ACTS OF MISCONDUCT**

(i) **Negligence, damage or misuse of the Authority's property**

This is when an employee loses or damages employer's property through careless or negligent behavior resulting in no or minimal loss or damage.

(ii) **Unsatisfactory work performance**

An employee performs his or her work unsatisfactorily if he or she fails to take due care and attention in the performance of his or her job leading to substandard work or passing time idly and inefficiently resulting in failure to complete work.

(iii) **Habitually reporting for work late**

An employee commits an act of misconduct if he or she is in the habit of continuously reporting late for work after the stipulated time for the commencement of work.

(iv) **Unauthorised absence from work for one (1) to two (2) days**

An employee commits an act of misconduct if he or she fails to report for work for one (1) to two (2) days without any reasonable cause and without authority.

(v) **Sleeping during working hours**

An employee sleeps on duty if, while performing his or her work, he or she falls asleep or fails to keep awake. It is an act of misconduct for an employee to sleep on duty during working hours.

(vi) **Conducting unauthorised business during working hours**

It is an act of misconduct for an employee to conduct his or her own private business of any nature or working for another person during working hours when he or she is officially at work.

(vii) **Disregarding communication channels**

This is when an employee ignores the set communication channels within the Authority either in airing their grievances or in the performance of their work.

(viii) **Using abusive language, gestures or demeaning language against another employee**

An employee commits an act of misconduct if he or she uses bad language which is abusive, provocative and demeaning against a co-employee or anyone in the workplace.

(ix) **Discourteous behaviour to clients, visitors and other employees**

This is when an employee behaves in a disrespectful manner whether verbally or physically towards the Authority's clients, visitors and other employees.

(x) **Exchanging of duty without authorisation**

Both employees commit a moderate offence when they exchange duty for each other without the authority or approval of the immediate superior.

9.3 **SERIOUS ACTS OF MISCONDUCT**

(i) **Willful damage or serious neglect of the employer's property**

An employee willfully damages property if, without necessity or justification, he or she deliberately causes

damage to any property belonging to the employer, or destroys it, or is reckless or does not care whether such property would be damaged or destroyed.

(ii) **Unauthorised absence from work for between three (3) and four (4) consecutive days without leave or reasonable cause**

An employee commits a very serious act of misconduct if he or she does not report for work for three (3) to four (4) consecutive days without any reasonable explanation and without obtaining authority.

(iii) **Non-compliance with established procedures/ standing instructions and refusal to take instructions from a person in authority**

An employee is in breach of this provision if he or she fails to adhere to the set Authority's procedures and standing instructions and also if he or she refuses to take lawful instructions from a person in authority whilst performing his or her duties.

(iv) **Obstructing or refusing to cooperate with personnel assigned to carry out an investigation**

An employee commits a serious act of misconduct if he or she refuses in any way to cooperate with personnel carrying out any investigation or audit.

(v) **Malingering**

An employee is guilty of malingering if he or she obtains leave by false pretense or falsely obtains medical certificate in order to obtain sick leave.

(vi) **Violating safety rules or measures resulting in injury to self or others**

This occurs where an employee either negligently or intentionally breaches safety measures resulting in injury to the employee or others.

(vii) **Failure to report after witnessing an accident**

An employee commits a serious act of misconduct if he or she, after witnessing an accident involving the

employer's property, deliberately fails or refuses to report such accident.

(viii) **Failure to report an accident**

It is an act of misconduct to not file a report after being involved in an accident.

(ix) **Refusal to work overtime**

This is when an employee refuses to work overtime when the work so demands and has been instructed by a person in authority to work overtime in terms of the conditions of employment.

(x) **Possession of dangerous weapons in the work premises without permission**

An employee is in breach of this Code in a serious way if he or she brings dangerous weapons within the workplace without authority.

(xi) **Unauthorised use of the employer's property, including vehicles and equipment**

This is when an employee carries unauthorised passengers in the Authority's vehicle either for personal gain or not. It also includes any unauthorised use of the employer's property or equipment.

(xii) **Driving the Authority's vehicle without a license or authority**

An employee commits an act of misconduct if he or she drives the Authority's vehicle with or without a valid driver's license without authority.

9.4 **GROSS ACTS OF MISCONDUCT**

(i) **Theft**

This is an act where an employee dishonestly takes property belonging to the employer or another employee or any other person with the intention of permanently keeping the property or to dispose of it as if it were his or her own.

(ii) **Fraud**

An employee commits fraud when he or she makes a false statement or claim whether in oral or written form and to make any false representation by word or conduct in order to obtain material advantage, altering or attempting to alter fraudulent or false documents.

(iii) **Bribery or corruption**

An employee commits this offence by giving or receiving or attempting to give or receive any bride or doing or attempting to do, or inducing or attempting to induce any person to do, any corrupt act to the detriment of the employer.

(iv) **Inciting, encouraging or recommending unlawful collective job action**

This is when an employee acts or speaks in a way that incites, persuades or encourages other employees to take illegal collective job action.

(v) **Any act or conduct or omission inconsistent with the fulfillment of the express or implied conditions of the employee's contract of employment**

An employee commits a gross offence if he or she indulges in any act or omission which goes against the spirit of his or her contract of employment either implied or express.

(vi) **Willful disobedience to a lawful order**

This is when an employee shows clear intention that he or she will not carry out a lawful order or instruction given by a person in authority.

(vii) **Gross insubordination**

An employee shows gross insubordination when the employee deliberately refuses to carry out instructions so as to undermine the authority of one's supervisor or manager. The offence is aggravated if the refusal is committed in the presence of other employees or clients.

(viii) **Absence from work for a period of five or more consecutive days without leave or reasonable cause**

It is a gross act of misconduct for an employee to be absent from work for five or more consecutive working days without reasonable excuse.

(ix) **Gross incompetence or inefficiency in the performance of work**

This relates to habitual performance of unsatisfactory performance or substandard work resulting in extremely poor work output which may result in serious damage or prejudice to the employer or potential thereof.

(x) **Lack of skill or qualification which the employee expressly or implied himself or herself to have**

An employee commits a gross act of misconduct if he or she fakes to possess a certain skill set or qualification.

(xi) **Engaging in any activity that puts the name of the Authority and or standing in disrepute**

An employee commits a gross act of misconduct if they engage in any activity that puts the name of the Authority and or standing in disrepute.

(xii) **Fighting and riotous behaviour**

This involves engaging in mutual violent attacks or engaging in riotous behaviour.

(xiii) **Consumption of alcohol and or taking illegal drugs and substances on duty**

This involves taking alcohol or any intoxicating drinks or any prohibited drugs and substances by law which has the effect of inducing drowsiness, sleep, or senselessness whilst on duty.

(xiv) **Sabotage**

This is when an employee incapacitates normal operations of a plant or equipment or performs substandard work or repairs in order to interrupt operations.

(xv) **Willful loss or damage of employer's property**

An employee willfully loses or damages property if any

property belonging to the employer, which is entrusted into his or her care or custody or is made available for his or her use in the course of doing his or her work, is lost or damaged through negligence.

(xvi) **Sexual harassment**

This is behaviour that abuses, harasses, denigrates, ridicules, or offends another employee because of his or her sex. It involves but is not limited to unwanted, unwelcome, unsolicited sexual advances, contacts or comments, which include deliberate or repeated sexual gestures, sounds, pictures, pornographic material in the workplace. It can be verbal, non-verbal or physical.

(xvii) **Conviction for any criminal offences**

An employee is guilty of misconduct if he or she is convicted of any criminal offence relating to company business and leading to imprisonment, with or without the option of fine, for a period in excess of ten days.

(xviii) **Embezzlement**

Conversion of company property or funds to one's use, which property would have been received by him or her on behalf of the employer.

(xix) **Aiding and abetting theft**

Where an employee enables, assists, encourages or permits any person to steal the employer's property or another employee's or customer's property or refuses to give information within his or her knowledge concerning the stolen property or deliberately closes eyes to the obvious. It also entails deliberately giving false testimony related thereto.

(xx) **Violence and harassment**

Violence refers to a range of unacceptable behaviours and practices, or threats thereof, whether a single occurrence or repeated, that aim, result in, or are likely to result in physical, psychological, sexual or economic harm, and include gender-based violence and harassment. Accordingly, no employee shall directly or indirectly

act in a manner that amounts to violence and harassment towards another employee or any other person at the workplace, including any action in the course of, linked with or arising out of work—

(a) in the workplace, including public and private spaces where these are places of work;

(b) in places where the worker is paid, takes a rest break or a meal, or uses sanitary, washing and changing facilities;

(c) during work-related trips, travel, training, events or workplace organised social activities;

(d) through work-related communications, including those enabled by information and communication technologies;

(e) in employer-provided accommodation; and

(f) when commuting to and from work in or using transport provided by the employer.

(xxi) **Abuse and or illegal activities on ICT Infrastructure and the Social media**

Any form of abuse of or illegal use of the employer's ICT infrastructure, which include computer systems and network, or while using one's own computer, laptop or other ICT devices or cell phone, including smart phones. This includes attempting to break into or gaining access to any accounts or computer systems owned or in the lawful possession of the Authority for whatever reason or disabling any account or systems is a gross act of misconduct under this code.

(xxii) **Social media misconduct in relation to the Authority**

Social Media Misconduct in relation to the Authority, that is to say, whether or not damage has been done to the Authority's reputation or not the Authority is named in the post or whether or not the offender made the post from a point or location other than the Authority's premises—

(a) posting confidential information pertaining to the Authority;

(b) posting defamatory or derogatory or demeaning remarks about the Authority's shareholder(s), Board, management or any other person within the employ of the Authority; or

(c) making crude or threatening posts against a Director, Manager or any other employee of the Authority; or

(d) making inappropriate work–related posts.

(xxiii) **Illegal connections of water or electricity or by passing the Authority's devices**

It is a gross act of misconduct for an employee to illegally connect water or electricity for a customer of the Authority, for own use or financial gain. This includes bypassing measuring devices.

(xxiv) **Knowingly withholding information involving acts of dishonest by a colleague which is prejudicial to the employer**

It is an act of gross dishonesty for an employee to knowingly withhold information made by a colleague which is prejudicial to the employer.

(xxv) **Loss of a firearm or ammunition which one is in charge of, or failure to take safety precautions in relation to a firearm or weapon one is lawfully in charge of or failure to report loss of firearm or ammunition within two (2) hours of the incurrence or discovering the loss**

The loss or failure to report or taking care of safety precautions relating to a firearm or ammunition or failure to report a lost firearm within two (2) hours of incurring the loss or discovering the loss is a gross act of misconduct.

(xxvi) **Breach of confidentiality**

It is a gross misconduct when an employee breaches secrecy or confidentiality by—

(a) divulging any confidential information to any person who is not privileged to get such information;

(b) disclosing classified or confidential information relating to the affairs of the Authority to an unauthorised person; or

(c) where one is not a Trade union or Worker's Committee in the conduct of his duties, issuing without permission or authority, press statements or information concerning the affairs of the Authority to the actual or potential prejudice of the Authority or;

(d) purporting to speak for or on behalf of the Authority and/or to represent the Authority to the media, investors and/or analysts without the Corporate Communications and Public Relation Department's approval; or

(e) disclosing personal details or giving the personal files of any employee to an unauthorised person or agent.

10. Disciplinary proceedings and appeal procedure determination of offences

10.1 No employee shall be subjected to any disciplinary proceedings for misconduct unless the alleged offence is specified under clause 9 of this Code.

11. Suspension pending investigation

11.1 Suspension may be ordered by the employer in accordance with the following—

11.2 If the employer considers it appropriate, summary suspension with or without pay and benefits may be effected immediately:

Provided that there shall be no suspension for an offence in Category A:

11.3 Where the employee has been suspended without pay and benefits this shall not exceed fourteen working days.

11.4 Where an alleged offence is not proved, or the employees' appeal is upheld, any pay and benefits withheld shall be reinstated forthwith in full.

12. Investigation process, record and rights of appearance and appeal

12.1 A supervisor who has belief that an offence has been committed in all instances shall carry out an investigation into the matter—

12.2 In every case, the investigation shall be conducted by the employee's immediate superior. The superior may, however, if he or she deems it necessary, call on personnel from other departments, e.g. Audit or Security, to help him or her carry out the investigation. Notwithstanding such assistance, the employee's immediate supervisor shall remain accountable for both the process and results of the investigation.

12.3 An investigation in terms of section 12.2 shall require the following—

(a) written statements from accused employee(s);

(b) statements from witnesses and others involved, if any;

(c) examination of documents and records;

(d) physical examination of equipment or vehicles involved in the alleged breach;

(e) written description of the event.

12.4 After an investigation, the investigator shall determine whether or not there is a prima facie case, for a hearing. If there is no prima facie case the matter shall be closed and the accused employee informed immediately in writing. If there is a prima facie case, the following shall apply—

(a) if the alleged offence is occurring for the first time and would, if proven, attract a maximum penalty of a verbal warning, the investigator shall conduct the hearing. The accused employee shall be given two working days' notice of the hearing. The accused employee shall be entitled to be represented by a legal practitioner at his or her own expense, a member of the worker's committee or fellow employee. At the hearing there must be present a member of the worker's committee as an observer. If

the verdict is "guilty", a verbal warning shall be imposed and this shall be in the form of a minute witnessed by the member of the worker's committee attending as an observer. Such minute will remain alive for three months after, which it will expire. If the accused employee is acquitted, the employee's record shall be cleared of all reference to the case;

(b) in all other cases, the matter shall be heard by a hearing committee composed of a Chairperson who shall be a member of management who is not the investigator and equal numbers of up to two representatives of the worker's committee and management. It shall be the duty of the investigator, through and with the assistance of the Human Resources Department, to inform the accused employee, in writing, of the nature of the charge at least three working days before the hearing. The notice to attend the hearing must indicate the time and venue for the hearing. The accused employee shall be entitled to be represented by a legal practitioner at his or her own expense, trade union or worker's committee member or a fellow employee of his or her choice and to call and/or examine witnesses.

12.5 In all cases, the verdict of a disciplinary process, together with reasons, must be made and conveyed to the accused employee within five working days. An employee found guilty must always be informed about the right of appeal provided for in the Code.

13. Appeals

13.1 There shall be no right of appeal against a verbal warning.

13.2 All appeals against the decision of the hearing committee shall go to the Grievance and Disciplinary Committee (GDC) of the National Employment Council for the Undertaking of the Zimbabwe National Water Authority in the requisite form. (see Appendix VI).

The appeal shall be lodged in writing to the General Secretary within five working days after receipt of the verdict of the hearing committee. A copy of the appeal shall at the same time

be delivered to the hearing committee that dealt with the matter and whose decision is the subject of the present appeal.

13.3 On arrival at the NEC, an appeal made under section 13.2 shall, unless judged by the Committee to be frivolous or without merit, be copied to the employer with a letter inviting representations if the appeal is to be opposed. These representations shall be lodged with the NEC within five working days and shall include six copies of—

(a) a memorandum setting out detailed representations in respect of the grounds of appeal;

(b) the letter notifying the employee of the alleged offence;

(c) any statement of case/defense by the employee in respect of the allegations;

(d) the records of the initial hearing into the allegation, including witnesses' statements, other material evidence, cross-examinations and the findings of the hearing;

(e) the detailed record of the Works Council hearing of the employee's appeal together with their decision and the reasoning thereof;

(f) the comments or review of the Works Council in respect of the appeal to the NEC.

13.4 In order to arrive at a determination, the Committee may—

(a) if in its opinion the written submissions are sufficient, uphold or dismiss the appeal either wholly or in part, or

(b) remit the appeal and/or the respondents' representations for rectification or for further evidence; or

(c) hear argument from the parties concerned in the appeal, who may be legally represented, provided the other party is given the right to appear, cross-examine, and to argue in rebuttal.

13.5 The GDC shall make a determination within 14 working days of receipt of the appeal provided this period may be extended in writing to the party concerned.

13.6 The determination shall be conveyed in writing to the appellant and respondent, or to those representing them.

13.7 Appeals against determinations of the GDC may be made to the Labour Court within the time prescribed in the Act and rules of that court.

14. Penalties

14.1 Penalties for acts of misconduct shall be in accordance with **Appendix I** and shall be four levels of severity as follows: verbal warning, written warning, final written warning and dismissal. These written warnings correspond with acts of misconducts described in this Code as serious, very serious and gross misconducts:

Provided that none of the penalties shall be mandatory.

15. Written warnings

15.1 Written warnings shall be in the form set out in **Appendix III** and shall be signed as provided therein. If the employee refuses to sign to acknowledge receipt, this shall be deemed to be insubordination. This shall not impair the employee's right to enter an appeal.

15.2 A first written warning shall be disregarded for disciplinary purposes after six (6) months, and a final written warning after twelve (12) months. Both categories of warning shall be retained on file for record.

15.3 Where an offence which would ordinarily attract a verbal warning occurs during the subsistence of a verbal warning for a similar offence, a written warning shall be given setting out the details of the offence in the form set out in **Appendix III**.

15.4 Where a first written warning exists and the same offence is repeated or a similar offence (i.e. another offence but in the same category of offences is committed, a final written warning shall be given with a caution that dismissal will result from the commission of any other offence other than one with a verbal warning during the validity of the final written warning.

15.5 An offence is regarded as a second or repeat offence when the penalty for the first one is still valid and the repeat offence does not carry a verbal warning.

15.6 Whenever a final written warning is given, it shall be accompanied by a dismissal caution stating that any commission

of a similar offence during the currency of the final written warning may lead to dismissal.

16. Dismissal procedure

16.1 An employee shall not be dismissed arbitrarily.

16.2 An employee shall not be dismissed solely because a criminal charge is pending, or because he or she is absent having been detained in custody or held for questioning by the police.

16.3 An employee can only be dismissed after following the disciplinary and appeal procedures set out in this Code.

16.4 In all cases where an employee who has been charged with a dismissable offence and the verdict of "guilty" is made, the accused employee must be allowed to mitigate before a penalty is passed against him or her, provided that the complainant is also given the opportunity to make submissions in aggravation. Both submissions in mitigation and aggravation may be made orally or in writing.

17. Works council disciplinary committee

17.1 COMPOSITION OF WORKS COUNCIL DISCIPLINARY COMMITTEE

17.1.1 The Disciplinary Committee shall be constituted as follows—

(a) Chairperson of the Works Council;

(b) One or two Management representatives who sit on the Works Council;

(c) One or two members of the Workers Committee who sit on the Works Council; and

(d) Secretary, who is an internal Human Resources Practitioner.

17.1.2 The Works Council Disciplinary Committee must always be evenly balanced in terms of Management and Worker's Committee representation and at least one member from either side, plus the Chairperson of the Works Council will constitute the Works Council Disciplinary Committee.

17.1.3 The Chairperson of the Works Council Disciplinary Committee will generally lead discussion in a non-partisan manner.

17.1.4 In the event of a split decision, the Chairperson shall exercise a casting vote to break the deadlock.

17.1.5 Ordinarily the Chairperson shall make arrangements, through the Human Resources Department, for the convening of all disciplinary hearings before the Works Council. He or she will ensure that parties to the dispute have all the material, including the necessary documents, relating to any matter coming to the Works Council Disciplinary Committee.

17.1.6 Human Resources Department will provide secretarial services to the Works Council Disciplinary Committee and generally facilitate the smooth management of all disciplinary issues referred to the Works Council Disciplinary Committee by liaising with the parties and their representatives.

18. The national employment council grievance and disciplinary committee

18.1 There shall be established a Grievance and Disciplinary Committee of the National Employment Council constituted as follows—

(a) two representatives from the employer party; and

(b) two representatives from the trade union; and

the Chairman of the National Employment Council Grievance and Disciplinary Committee (GDC) who shall be the alternating vice chairpersons of the Council or the independent Chairman of the National Employment Council. The Chairman shall vote only in the event of a deadlock and, in that event, his or her vote shall be a casting vote.

18.2 The Grievance and Disciplinary Committee shall consider valid appeals made to it in terms of this Code, and shall make and notify its determination thereon to the appellant and respondent

within fourteen (14) working days of receipt of the appeal, which may be decided on the papers or after hearing parties, depending on the complexity of the issues and or the views of the parties involved.

18.3 An appeal from the determination of the Grievance and Disciplinary Committee shall lie to the Labour Court within such time and in such manner as may be provided for, or prescribed in terms of the Act and Court Rules.

19. Role of human resources department

19.1 The Human Resources Department shall liaise with disciplinary hearing officials, including the chairperson of the Works Council Disciplinary Committee, in ensuring that all internal hearings are managed within the time frames stipulated under this Code.

19.2 The Human Resources Department shall provide advisory and secretarial services to both the hearing officials and the chairperson of the Works Council Disciplinary Committee.

19.3 Human Resources Department shall maintain neutrality in its dealings with the parties to the dispute.

19.4 As far as is possible Human Resources Department shall be responsible to convey all documents relating to disciplinary matters appealed from the Works Council Disciplinary Committee to the Grievance and Disciplinary Committee at the National Employment Council.

19.5 In all instances, Human Resources Department shall note the dates by date stamping all documents and processes filed by the parties to the dispute.

20. Grievance handling

20.1 Definition of grievance

A grievance is complaint or dissatisfaction by an employee or employees brought about by any particular condition or happening at work, or about conditions of employment or any offending behavior on the part of management or a fellow employee. All employees have a right to seek redress of grievances.

21. Grievance Procedure

21.1 **First Stage: Immediate supervisor**

(a) an aggrieved employee or a group of employees must first put verbally or in writing the grievance to the immediate supervisor within two (2) working days:

(b) in attempting to resolve the grievance, the supervisor shall—

(i) hold a hearing of the grievance;

(ii) permit the employees to be represented by a member of the worker's committee or another employee of his or her choice;

(iii) offer counseling if necessary with a view to arriving at an equitable settlement of the grievance;

(iv) evaluate the grievance and communicate the decision to the aggrieved employee or group of employees;

(c) the supervisor shall complete the process within a period of two (2) working days.

21.2 **Second Stage: Head of Department/Catchment Manager**

If the aggrieved employee or group of employees is dissatisfied with the supervisor's decision, he or she should submit a written grievance in the appropriate form in Appendix (IV) within a period of two working days. The department head shall do his or her best to resolve the grievance and communicate his or her decision in writing to the aggrieved employee or group of employees with a period of two working days.

21.3 **Third Stage: National Employment Council**

The Grievance and Disciplinary Committee shall make a decision within fourteen (14) working days of receipt and communicate it in writing to the aggrieved party and to management through the chairperson of the Works Council.

21.4 **Fourth Stage: Referral to the Designated Agent:**

If a grievance remains unresolved after the expiry of thirty (30) days from the date of its reference to an immediate supervisor

in terms of subsection 1(a), the aggrieved employee may refer the grievance to a designated agent, who may then deal with it in terms of the Act.

Principles guiding the management of grievances

22. (1) Management and the Worker's Committee shall ensure that the necessary secretarial and other facilities are made available for the smooth functioning of the grievance machinery.

(2) Any employees who raises a grievance shall not be made to suffer any loss in wages for any time lost in this manner.

(3) No manager shall handle a grievance in which the complaint raised concerns that manager.

(4) The representatives on the NEC Grievance and Disciplinary Committee shall have the right of access to any document connected with the inquiry which may become necessary to understand the employee or group of employees' grievances, except that where appropriate in the case of a document of a confidential nature, management may impose the duty of confidentiality upon the parties involved in the dispute.

23. APPENDICES

APPENDIX I

CATEGORISATION OF OFFENCES AND PENALTIES

1. **Key to penalties**

VW - Verbal warning, validity three months
WW - Written warning, validity six months
FWW - Final written warning, validity twelve months
D - Dismissal

2. Offences are in four categories depending on their seriousness. These categories are:

Category A: Minor offences
Category B: Moderate offences
Category C: Serious offences
Category D: Gross offences

APPENDIX II

MISCONDUCT

Guide to Penalties and Occurrences

Category	Offences	First	Second	Third	Fourth
A	Horseplay	VW	WW	FWW	D
B	Sleeping during working hours	WW	FWW	D	
C	Willful damage of employer's property	FWW	D		
D	Fraud	D			

APPENDIX III

WRITTEN WARNING/FINAL WARNING

To be completed in triplicate

To ..... Company No .....Date: .....
In terms of the Zimbabwe National Water Authority Undertaking's Disciplinary Procedure, you are advised that you are being given a .....
warning for the following reason(s)
.....
.....
.....

....
Employee Hearing Committee Chairperson

(Warning received and understood)

Employee representative(s) .....
.....

This warning will remain valid for six/twelve months before expiring (delete the inapplicable)

Copies to: Employee
Human Resources Department

APPENDIX IV

WRITTEN GRIEVANCE FORM

To: Management Date: .....

From: ..... Department: .....
Name of employee

Outline of grievance

.....
.....
.....

Suggested solution by employee

.....
.....
.....

.....
Employee's signature

.....
Witness's signature

Date of hearing.....

Management's Resolution

.....
.....
.....

Grievance Resolved …… Not Resolved ……
(Place an X in appropriate Line)

If grievance is unresolved state, why .....
.....
.....

Management Signatory .....

Designation .....

Employee .....

APPENDIX V

NOTIFICATION TO PARTY TO ATTEND DISCIPLINARY HEARING BEFORE THE WORKS COUNCIL DISCIPLINARY COMMITTEE

To: .....

.....

Name and address of party You are hereby notified that you have been charged under the Code of Conduct under MINOR/MODERATE/ SERIOUS/GROSS acts of misconduct, specifically of:

.....

.....

in that you (description of incident/event

.....

.....

You are, therefore, invited to attend a hearing before the Disciplinary Committee as follows:

Date of hearing: …… Time:……

Venue: ……

Right to representation:— It your right to be represented at the hearing by any one of the following persons:

A lawyer of your choice and at your own expense, an official of the relevant trade union, a member of the Worker's Committee or a fellow employee of your choice.

Right to be heard:— You have the right to bring any witnesses to lead evidence in your defense. In this respect, you shall liaise with Human Resources Department, at least 48 hours before the hearing, to assist with securing the release and attendance of your witnesses.

If as a party, you fail to attend the hearing at the time and place notified, the hearing may proceed without you to the possible detriment of your interests.

Given under my hand at this..... day of ……20……

Signed: ……

Acknowledgement of receipt of notification to attend proceedings

…….. ……

Employee Date

APPENDIX VI

APPEAL TO THE NEC GRIEVANCE AND DISCIPLINARY COMMITTEE

TO BE VALID THIS MUST BE DELIVERED WITHIN FIVE (5) WORKING DAYS OF THE RECEIPT OF THE WORKS COUNCIL DISCIPLINARY COMMITTEE DECISION

To: General Secretary

NEC for the Undertaking of the Zimbabwe National Water Authority

From: ..... (Name of employee)

..... (address of employee)

I hereby appeal against the decision of the Works Council received by me on ……(date). The decision was (description of decision)
.....
.....

The offence/grievance for which I am appealing is (nature of offence/ grievance)
.....
.....

The grounds of my appeal are—
.....
.....
.....If the space above is inadequate appellant may attach these grounds, which must still remain short and straight to the point
.....
.....
.....
.....

....
Signature of appellant Date

APPENDIX VII

NOTIFICATION TO PARTY TO ATTEND PROCEEDINGS AT THE NEC GRIEVANCE AND DISCIPLINARY COMMITTEE

To: .....
.....
.....
(*Name and address of party*)

You are hereby notified that the matter concerning: .....
.....
.....
.....
(*Subject of appeal/matter*)

in respect of which a notice of reference was made on the ……(date)

and to which you are a party/to which you have been joined as a party/shall be heard before:

.....
.....
(*Specify the tribunal or the designation of the officer, as the case may be*)

at: .....
.....
(*Place*)

on: ..... at the hour.....
(*Date*) (*Time*)

NB: If as a party you fail to attend the hearing at the time and place notified, the hearing may proceed without you to the possible detriment of your interests.

Given under my hand at this..... day of ……20……

Signed: ……

Declaration

24. The employer and the trade union having arrived at the agreement set forth herein, the undersigned hereby declare that the foregoing is the consolidated agreement arrived at and affix signatures thereto.

Signed at Harare this day of 2024.

P. SHOTERE,
For and on behalf of the NEC-ZINWA Employee Party.

ENG. A. MARE,
For and on behalf of the NEC-ZINWA Employer Party.

S. DIMINGO,
Council Chairperson.

N. N. SIMANGO,
General Secretary.